

Sara,

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From: Shackleton, Sara

Sent: Monday, October 29, 2001 11:25 AM

To: Glover, Sheila

Subject: FIMAT Canada, Inc. Customer Agreement

Sheila: attached is the markup I am preparing to send to FIMAT Canada. Some of the redlining reflects ENA's prior agreement with FIMAT USA, Inc. A few things for you to note and we can chat quickly:

(1) Par. 5 - will we agree to a fee schedule now or "as agreed to from time to time"? [Glover, Sheila] AGREED "from Time to time" okay. We are requesting commission fee schedule. We will want to have before we sign. [Glover, Sheila] I have requested.

(2) Par. 7 - I have requested the interest rate schedule. Alternatively, I have "borrowed" language from the FIMAT USA, Inc. agreement. Which do you think is best?
[Glover, Sheila] We think the max legal rate or 150% sounds high. We want to see the interest rate schedule. I will request.

(3) Par. 8 - is the reference to CAD50,000 for speculative accounts alright? Or will this be simply a hedge account and that particular language is extraneous?
[Glover, Sheila] We have already ticked it off on the application as a hedge account so language should be extraneous.

(4) Par. 14 - will you need to object by phone (or is fax sufficient)? [Glover, Sheila] Trade differences are identified over the phone during as part of the daily broker check-out process.

<< File: Fimat Derivatives CanadaR1.DOC >>

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